CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Three political candidates challenged Illinois's procedure for counting mail-in ballots received after election day. We consider whether the candidates have standing to maintain their suit.

I

Illinois law requires election officials to count mail-in ballots postmarked or certified no later than election day and received within two weeks of election day. Ill. Comp. Stat., ch. 10, §§ 5/18A–15(a), 5/19–8(c) (West 2022). In May 2022, Congressman Michael Bost and Presidential elector nominees Laura Pollastrini and Susan Sweeney (petitioners) sued the Illinois State Board of Elections and its executive direc-

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chelman, and *John W. Whitehead*; for the NRCC et al. by *Michael E. Toner*, *Jeremy J. Broggi*, *Brandis L. Zehr*, *Blake D. Murphy*, and *Ryan G. Dollar*; for the Phyllis Schlafly Eagles et al. by *Andrew L. Schlafly*; for the Public Interest Legal Foundation by *J. Christian Adams*; for the Republican National Committee by *Thomas R. McCarthy* and *Gilbert C. Dickey*; for Restoring Integrity and Trust in Elections et al. by *Christopher O. Murray*, *Julian R. Ellis, Jr.*, and *Michael L. Francisco*; and for Michael T. Morley et al. by *Michael T. Morley, pro se.*

Briefs of *amici curiae* urging affirmance were filed for the District of Columbia et al. by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, and *Chloe Q. Pan*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Kris Mayes* of Arizona, *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Anthony G. Brown* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for Bipartisan Former State Secretaries of State by *Donald K. Sherman* and *John B. Hill*; and for the Democratic Party of Illinois by *David R. Fox* and *Richard A. Medina.*

Erick G. Kaardal filed a brief for PA Fair Elections et al. as *amici curiae.*

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tor (respondents), claiming that counting ballots received after election day violates federal law. They principally contended that doing so conflicts with 2 U. S. C. § 7 and 3 U. S. C. § 1, which set election day as the Tuesday following the first Monday in November.

In their complaint and declarations, petitioners asserted several bases for standing as candidates.[1] They first argued that they were "entitled to have their election[ ] results certified with votes received in compliance with the federal Election Day statutes." App. to Pet. for Cert. 87a. And they alleged that they "rely on provisions of federal and state law in conducting their campaigns including, in particular, resources allocated to the post-election certification process." *Id.*, at 87a–88a. Congressman Bost further explained that the late counting of ballots would require him to "organize, fundraise, and run [his] campaign for fourteen additional days." *Id.*, at 66a. This, in turn, would "cost [his] campaign time, money, volunteers and other resources" by, for example, requiring the campaign to send poll watchers to "monitor late arriving ballots." *Id.*, at 67a. He also alleged that he "risk[ed] injury if untimely and illegal ballots cause[d him] to lose [his] election," and "because [his] margin of victory . . . may be reduced." *Id.*, at 68a. "A diminished margin of victory [would] lead to the public perception that [his] constituents have concerns about [his] job performance," which would "influence . . . future voters, Congressional leadership, donors, and potential political opponents." *Id.*, at 68a–69a.[2]

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[1] At the time, Congressman Bost was a candidate in the 2022 election, and Pollastrini and Sweeney planned to seek reappointment as Presidential electors in the 2024 election. Congressman Bost has served as the United States Representative for Illinois's 12th Congressional District since he was first elected in 2014. And he was previously a member of the Illinois House of Representatives, to which he was first elected in 1994.

[2] Petitioners also alleged that Illinois's ballot receipt deadline injured them as voters by "dilut[ing] the weight of [their] votes." App. to Pet. for Cert. 88a. They have not advanced that argument before this Court.

The District Court held that petitioners lacked standing and dismissed the suit. 684 F. Supp. 3d 720 (ND Ill. 2023). Petitioners appealed, and the Seventh Circuit affirmed. 114 F. 4th 634 (2024). The court concluded that the costs to monitor vote counting after election day could not support standing, because those costs would have been voluntarily incurred "to avoid a hypothetical future harm—an election defeat." *Id.*, at 642. In doing so, the court noted that Congressman Bost had won the last election with 75% of the vote. *Ibid.* It also rejected petitioners' asserted "'competitive injury,'" reasoning that they "do not (and cannot) allege that the majority of the votes that will be received and counted after Election Day will break against them." *Id.*, at 643. Finally, it dismissed petitioners' asserted injury based on an inaccurate vote tally as unduly "speculative," because "the election is months away and the voting process has not even started." *Id.*, at 644. Judge Scudder dissented in part. In his view, Congressman Bost had standing based on the extra costs his campaign would incur to monitor the counting of late arriving ballots. We granted certiorari. 605 U. S. 968 (2025).

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II

Under Article III of the Constitution, plaintiffs must have a "personal stake" in a case to have standing to sue. *FDA* v. *Alliance for Hippocratic Medicine*, 602 U. S. 367, 379 (2024). They must, in other words, be able to answer a basic question: "'What's it to you?'" A. Scalia, The Doctrine of Standing as an Essential Element of the Separation of Powers, 17 Suffolk U. L. Rev. 881, 882 (1983). Congressman Bost has an obvious answer: He is a candidate for office. And a candidate has a personal stake in the rules that govern the counting of votes in his election.[3]

[3] Because only one plaintiff needs standing for a suit to proceed, we do not address whether Pollastrini and Sweeney have standing to sue as prospective Presidential electors. See *Biden* v. *Nebraska*, 600 U. S. 477, 489 (2023).

A

An unlawful election rule can injure a candidate in several ways. It might cause him to lose the election. It might require him to expend additional resources. Or it might decrease his vote share and damage his reputation. Respondents concede that each of these harms can be legally cognizable. But they contend that Congressman Bost failed to adequately plead any such harm here. We need not resolve whether respondents are right, because winning, and doing so as inexpensively and decisively as possible, are not a candidate's only interests in an election.[4]

To start, candidates also have an interest in a fair process. Candidates are not common competitors in the economic marketplace. They seek to represent the people. And their interest in that prize cannot be severed from their interest in the electoral process—a process "of the most fundamental significance under our constitutional structure." *Illinois Bd. of Elections* v. *Socialist Workers Party*, 440 U. S. 173, 184 (1979). Win or lose, candidates suffer when the process departs from the law. Thus, the long-shot and shoo-in alike would suffer harm if a State chose to conduct its election by, say, flipping a coin. The result of such an election would not reflect the will of the people, and the candidates would lose the opportunity to compete for the people's support. So too, similar harms would result from less dramatic departures—for example, if a State decided to discard a random 10% of cast votes. Whether these decisions help, hurt, or have no effect on a candidate's electoral prospects, they deprive the candidate of a fair process and an accurate result.

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[4] Respondents do not dispute that Congressman Bost *pleaded* a distinct interest in the "election[ ] results [being] certified with [lawful] votes." App. to Pet. for Cert. 87a. They argue only that this interest is not legally cognizable. Because we disagree, we need not resolve the parties' pleading dispute.

Such harm to candidates is in no sense "common to all members of the public." *Lance* v. *Coffman*, 549 U. S. 437, 440 (2007) (*per curiam*) (internal quotation marks omitted). Voters, to be sure, also have a "general interest" in an accurate vote tally. *Ibid.* (internal quotation marks omitted). But a candidate's interest differs in kind. An unfair and inaccurate election plainly affects those who compete for the support of the people in a different way than it affects the people who lend their support. We have no occasion to theorize about the "significance of the[se] relative interests," contra, *post*, at 89 (JACKSON, J., dissenting), or the "sincer[ity]" with which they are held, *Carney* v. *Adams*, 592 U. S. 53, 59 (2020) (internal quotation marks omitted). What matters is that the harm candidates suffer is distinct from that suffered by the "people generally." *Massachusetts* v. *Mellon*, 262 U. S. 447, 488 (1923). Those who spend untold time and resources seeking to claim the right to voice the will of the people have "an undeniably different—and more particularized—interest" in knowing what that will is. *Hotze* v. *Hudspeth*, 16 F. 4th 1121, 1126 (CA5 2021) (Oldham, J., dissenting).

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Rules that undermine the "integrity of the electoral process" also undermine the winner's political legitimacy. *Crawford* v. *Marion County Election Bd.*, 553 U. S. 181, 197 (2008) (opinion of Stevens, J.). The counting of unlawful votes—or discarding of lawful ones—erodes public confidence that the election results reflect the people's will. And when public confidence in the election results falters, public confidence in the elected representative follows. To the representative, that loss of legitimacy—or its diminution—is a concrete harm. "[R]eputational harms," as a general matter, are classic Article III injuries. *TransUnion LLC* v. *Ramirez*, 594 U. S. 413, 425 (2021) (citing *Meese* v. *Keene*, 481 U. S. 465, 473 (1987)). But they are particularly concrete for those whose very jobs depend on the support of the people.

Candidates, in short, are not "mere bystanders" in their own elections. *Diamond Alternative Energy, LLC* v. *EPA*,

606 U. S. 100, 110 (2025). They have an obvious personal stake in how the result is determined and regarded. Departures from the preordained rules cause them particularized and concrete harm.[5] The same is true of competitors in other contests. Each runner in a 100-meter dash, for example, would suffer if the race were unexpectedly extended to 105 meters. See Tr. of Oral Arg. 90. Whether a particular runner expects to finish strong or fall off the pace in the final five meters, all would be deprived of the chance to compete for the prize that the rules define. The fastest to run 105 meters has not won the 100-meter dash. And in much the same way, an unlawful extension of vote counting deprives candidates of the opportunity to compete for election under the Constitution and laws of the United States.

B

Respondents and the dissent dismiss these harms, which plainly affect candidates in a "personal and individual way," as generalized grievances. *Spokeo, Inc.* v. *Robins*, 578 U. S. 330, 339 (2016) (internal quotation marks omitted). And they suggest that in order to have standing, plaintiff-candidates must show some substantial risk that a rule will cause them to lose the election, prevent them from achieving a legally significant vote threshold, or damage their reputation or finances. Brief for Respondents 25–26; *post*, at 95. That approach finds no support in Article III's case or controversy requirement or our case law interpreting that requirement. And it is as practically untenable as it is undemocratic.

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[5] Contrary to the concurrence's suggestion, *post*, at 86 (BARRETT, J., concurring in judgment), such harm is far "more particularized and more concrete than the mere assertion that something unlawful benefited [a] competitor." *Already, LLC* v. *Nike, Inc.*, 568 U. S. 85, 99 (2013). And it bears little resemblance to the specific injury alleged in *Already*: a risk of being sued by a company that had issued an "unconditional and irrevocable" covenant not to sue. *Id.*, at 93.

Premising standing on a candidate's risk of election loss or failure to achieve a certain vote threshold could channel many election disputes to shortly before election day—or worse, after. Only then will many candidates be able to predict with any certainty that a rule will be outcome determinative. And only then will they be able to produce the "manner and degree of evidence required," particularly at later "stages of the litigation," to establish standing. *Lujan* v. *Defenders of Wildlife*, 504 U. S. 555, 561 (1992).

Yet "[t]his Court has repeatedly emphasized that lower federal courts should ordinarily not alter the election rules on the eve of an election." *Republican National Committee* v. *Democratic National Committee*, 589 U. S. 423, 424 (2020) (*per curiam*). Such late-breaking, court-ordered rule changes can "result in voter confusion and consequent incentive to remain away from the polls," and thus undermine the "[c]onfidence in the integrity of our electoral processes . . . essential to the functioning of our participatory democracy." *Purcell* v. *Gonzalez*, 549 U. S. 1, 4–5 (2006) (*per curiam*); see also *Republican Party of Pennsylvania* v. *Degraffenreid*, 592 U. S. ——, ——– —— (2021) (THOMAS, J., dissenting from denial of certiorari). The democratic consequences can be even more dire if courts intervene only after votes have been counted. "Count first, and rule upon legality afterwards, is not a recipe for producing election results that have the public acceptance democratic stability requires." *Bush* v. *Gore*, 531 U. S. 1046, 1047 (2000) (Scalia, J., concurring in grant of stay).

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Even if some candidates could muster evidence well before election day that a rule will likely be outcome determinative, respondents' and the dissent's approach would convert Article III judges into political prognosticators and "invite[] findings on matters as to which neither judges nor anyone else can have any confidence." *Rucho* v. *Common Cause*, 588 U. S. 684, 711 (2019) (internal quotation marks omitted). As a number of prominent historical figures can attest, not

least among them Charles Evans Hughes and Thomas Dewey, "accurately predicting electoral outcomes is not" a "simple" endeavor. *Id.*, at 712. And if the prognosticators themselves lack the "political clairvoyance" to predict the winner *after* all votes have been cast, then surely judges are poorly positioned to assess whether a candidate's risk of loss, months earlier, is substantial. *Diamond Alternative Energy*, 606 U. S., at 123; see also *Vieth* v. *Jubelirer*, 541 U. S. 267, 287, n. 8 (2004) (plurality opinion). The limits of federal courts' jurisdiction do not rest upon such "unstable ground outside judicial expertise." *Rucho*, 588 U. S., at 713.

Nor would requiring candidates to plead a substantial risk of harm to their vote share leave courts on any surer footing. Such an approach would force judges to assess whether an election rule is likely to disadvantage a particular candidate. And at least as respondents suggest, judges must then also ensure that any disadvantage is linked to reputational or financial harm.[6]

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Judges are no better qualified to make such determinations than they are to assess a candidate's likelihood of winning or losing. Even if they could do so, this approach would still channel many disputes into postelection litigation. To bring a preelection suit, a candidate would have to plead and prove that voters who take advantage of the challenged rule will favor his rivals. Doing so while campaigning for those same voters' support is not just awkward, but politically dan-

[6] Respondents at times appear to suggest that "[a] candidate may have standing if she demonstrates that an election rule disadvantages her relative to a competitor," even absent proof of reputational or financial harm or a risk that she will lose the election. Brief for Respondents 26; see also Tr. of Oral Arg. 94. Yet it is far from clear why a slight but certain competitive disadvantage would qualify as an injury in fact but requiring a candidate to compete in an unfair election would not. Indeed, the harm a candidate would suffer from winning 60% of the vote, instead of 61%, seems less salient than the harm she would suffer if she instead won 62% because of an unlawful rule, and the public believed she had received an unfair advantage.

gerous. Particularly for new election rules, it may require divulging information about vulnerabilities that rival candidates could exploit. Faced with that prospect, many candidates are sure to wait until after votes are counted to sue.

Adding monetary harm to the equation, as the concurrence proposes, would change none of this. *Post*, at 84–85 (BARRETT, J., concurring in judgment). Plaintiffs cannot "manufacture standing by voluntarily" incurring costs. *Federal Election Comm'n* v. *Ted Cruz for Senate*, 596 U. S. 289, 297 (2022). They must incur those costs to "mitigate or avoid" a "'substantial risk'" of some independent harm. *Clapper* v. *Amnesty Int'l USA*, 568 U. S. 398, 414, n. 5 (2013). Acknowledging as much, the concurrence ultimately speculates that it is "reasonably probable" Congressman Bost's election will be at risk because of discrepancies in late-arriving ballots. *Post*, at 85. Such conjecture—beyond finding little support in the pleadings—carries all the concerns we have explained. And the concurrence's approach introduces a new one: Apparently, a candidate who pays poll watchers a penny would have standing, while one who relies on volunteers would not.

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Nothing about Article III requires this result. Candidates have a concrete and particularized interest in the rules that govern the counting of votes in their elections, regardless whether those rules harm their electoral prospects or increase the cost of their campaigns. Their interest extends to the integrity of the election—and the democratic process by which they earn or lose the support of the people they seek to represent.[7]

[7] We do not share the dissent's concern that our recognition of this commonsense reality will "open[ ] the floodgates" to candidate-led challenges to ballot "format." *Post*, at 97–98. Indeed, the dissent itself suggests that courts already "'often decide ballot-design cases,'" pointing to a case in which a court concluded that candidates *did* have standing to challenge "'the form of election ballots.'" *Post*, at 98, n. 5 (quoting *Kim* v. *Hanlon*, 99 F. 4th 140, 147, 153 (CA3 2024)). To the extent the dissent's concern is that federal courts will be inundated with more trivial "format" challenges, *post*, at 98, to things like "ballot font and typeface," Brief for

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"Courts sometimes make standing law more complicated than it needs to be." *Thole* v. *U. S. Bank N. A.*, 590 U. S. 538, 547 (2020). We decline respondents' invitation to do so here. As a candidate for office, Congressman Bost has standing to challenge the rules that govern the counting of votes in his election.

The judgment of the United States Court of Appeals for the Seventh Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE BARRETT, with whom JUSTICE KAGAN joins, concurring in the judgment.

While I agree with the Court that Congressman Bost has standing, I disagree with its reasoning. In my view, Congressman Bost has standing because he has suffered a traditional pocketbook injury, not because of his status as a candidate.

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I

The Constitution limits federal courts to deciding "Cases" and "Controversies." Art. III, § 2. To satisfy this requirement, a plaintiff must show (among other things) that he has suffered an actual injury—put colloquially, he must be able to answer the basic question " 'What's it to you?' " *Ante*, at 76. We give content to that maxim by requiring a plaintiff to show a "concrete, particularized, and actual or imminent" injury. *Clapper* v. *Amnesty Int'l USA*, 568 U. S. 398, 409 (2013) (internal quotation marks omitted). A "particularized" injury is a harm affecting a plaintiff "in a personal and individual way," not a "generalized grievance" shared by the

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District of Columbia et al. as *Amici Curiae* 20, it is neither clear why candidates would waste their resources in this way nor on what basis in federal law such suits could be brought. In any event, we address today only candidates' standing to challenge rules that, like Illinois's, govern the counting of votes in their elections.